Harris County District Court

Cause No. 2025-CV-0014

Amber Jones, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	10-20-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a prpeonderance of the evidence, as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defednant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way, and failed to maintain contorl of the vehicle. Under Chapter 33 of the Texas Civil Practice and Remdeies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff.

Second, the collision was proximately caused by the acts or omissions of a third party over whom Defendant had no control, and that conduct constitutes a new and independent cause of Plaintiff's alleged injuries.

Third, Plaintiff failed to mitigate damages by not following reasonable medical advice or seeking timely treatment. Any recovery for damages that reasonably could have been avoided must be barred or reduced accordingly.

Defendant reserves the right to amend this Answer as discovery proceeds.